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B. DECISIONS OF THE UNITED STATES SUPREME COURT RELY UPON FLOYD V. BARKER (1607) AND THE CASE OF THE MARSHALSEA (1613), WHICH IS MISPLACED RELIANCE, FOR THOSE CASES AROSE IN THE PERIOD OF TIME ABOVE WHEN THE KING AND HIS COURTS WERE THE LAW, AND THE PEOPLE ACTING THROUGH THEIR PARLIAMENT HAD NOT YET ESTABLISHED THEIR RIGHT TO RULE THE REALM 25

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D. DECISIONS OF THE SUPREME COURT, IN RELYING UPON EARLY ENGLISH CASES, DO NOT ADEQUATELY ADDRESS THE EFFECT OF THE INTERVENING DECLARATION OF INDEPENDENCE AND THE ADOPTION OF A WRITTEN CONSTITUTION INCLUDING AMENDMENT IX CONCERNING INHERENT RIGHTS OF THE CITIZEN 26

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